HIGH COURT OF KERALA AT ERNAKULAM

APPELLATE JURISDICTION · SINGLE JUDGE

Writ Petition (Civil) No. 35293 of 2018 **CNR: KHC010352932018**

Date: 04 December, 2018 *Citation: 2018:KHC:1120*

CORAM: Hon'ble A. Muhamed Mustaque, J.

Petitioner: Fathima Thasneem (represented by father)

- VERSUS -

Respondent: State of Kerala & Christ Nagar Senior Secondary School

DOMAIN: EDUCATION LAW & SCHOOL UNIFORM AUTONOMY **STATUS: Good Law (Binding Kerala HC Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

When individual fundamental rights under Article 25 clash with the institutional autonomy of a private school to manage its affairs under Article 19(1)(g), the larger public interest of secular uniform discipline in a private school prevails.

STATUTES APPLIED: Article 19(1)(g), Article 25, Article 26

DISPOSITION: PRIVATE SCHOOL UNIFORM POLICY UPHELD

EXECUTIVE RATIO SUMMARY:

Justice A. Muhamed Mustaque held that the institutional autonomy of a private school to prescribe a uniform dress code prevails over an individual student's religious preference to wear a headscarf.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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